

PETITIONER’S MOTION TO COMPEL KRISTINE KLUSSMAN’S FURTHER RESPONSES TO DEMANDS FOR PRODUCTION OF DOCUMENTS, SET ONE

TENTATIVE RULING: The motion is DENIED.

Petitioners Robert Stobo and Douglas Croft, as Trust Protectors of the Ashe Family Trust and Ashe Vineyard Trust, and Ashe Advisors, LLC move, pursuant to California Code of Civil Procedure sections 2017.010, 2031.210, 2031.220, 2031.230, 2031.240, and 2031.310, and California Rules of Court, rule 3.1345, for an order compelling Responding Party Kristine Klussman to provide further responses to Petitioners’ Demand for Production of Documents, Set One, Nos. 23, 55, 56, and 58-60, and to produce all responsive, nonprivileged documents and communications in her possession, custody, or control within 15 days of the hearing.

In moving to compel additional responses to requests for production of documents, and/or to compel the actual production, the moving party must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th, 92 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117.)

Demand for Production No. 23: The Motion is DENIED as to this Demand. Petitioners fail to show good cause for the production, particularly in light of the impact of the attorney-client privilege to the documents identified.

Petitioners contend that “Ms. Klussman placed attorneys’ fees at issue by seeking them in her First Amended Surcharge Petition. Counsel confirmed Ms. Klussman sought such attorneys’ fees as damages, not prevailing party fees.” (Separate Statement at 4:7-9.) However, Ms. Klussman clearly states that “Klussman seeks her attorney’s fees only as a prevailing party, not as damages.” (Responsive Separate Statement at 7:13-14.) This is consistent with allegations and prayers in the Surcharge Petition. (See, e.g., Surcharge Petition at ¶¶ 36, 41, and Prayer for Relief ¶ 2.)

Because an award of attorneys’ fees to the prevailing party are a form of costs of suit, a prevailing party may be obligated to support any such request at the time it is made. In this context, the Court finds that discovery into Ms. Klussman’s attorneys’ fees is premature.

Demand for Production No. 55-56: The Motion is DENIED as to these demands.

The subject demands seek “All COMMUNICATIONS between YOU and [MAX (Demand No. 55) / DAKOTA (Demand No. 56)] regarding any information ‘about the Trust’

YOU have provided to [MAX / DAKOTA], as referenced in paragraph 61 of the OBJECTION TO FAP.” (Separate Statement at 4:19-21.)

The Separate Statement does not define “the Trust.” Nor is “the Trust” defined in the OBJECTION TO FAP or to the First Amended Petition. The Court is aware there are multiple trusts referenced throughout the First Amended Petition, including the Ashe Family Trust, the modified Ashe Family Trust and the Vineyard Trust. However, it appears the parties understand “the Trust” to refer to the Ashe Family Trust and the Vineyard Trust. By way of examples: Petitioner’s Reply states “there can be no argument that communications between Ms. Klussman and her adult sons Max and Dakota regarding the Ashe Family Trust (and in particular, the Ashe Vineyard Trust) are relevant to Ms. Klussman’s claims of breach of contract and breach of fiduciary duty”; Ms. Klussman’s Opposition states, “[u]nder the Trust, the vast majority of the assets are held for the benefit of Prescott’s two children . . . while the vineyard and residence at the center of this dispute . . . , held through Ashe Vineyards, LLC, were allocated to a subtrust, the Vineyard Trust, for the benefit of Max, Dakota, and Prescott’s fiancée, Shabnam Bhaskaran. This litigation concerns only that single subtrust. The broader Ashe Family Trust, its many other holdings, and the separate, pending South Dakota proceedings are not at issue here.”

It is undisputed that the Napa County litigation concerns the “Vineyard Trust,” not the larger Ashe Family Trust, which the Court understands is being litigated in South Dakota. Therefore, communications between Ms. Klussman and her sons regarding non-Vineyard Trust matters are neither relevant nor likely to lead to the discovery of admissible information. While it is conceivable that there may be communications between Ms. Klussman and her son(s) concerning the Vineyard Trust that are discoverable, even given the privacy interests that are implicated, the demand is so broadly written, and the arguments in the Separate Statement so non-specific, it is impracticable for the Court to attempt to narrow these demands. For that reason, they are DENIED.

Demand for Production No. 58-60: The Motion is DENIED as to these Demand. Petitioners fail to show good cause for the production.

These demands seek documents “between you and DAKOTA/MAX related to any of Prescott Ashe’s Individual Retirement Accounts in which DAKOTA/MAX was named as a beneficiary.” Petitioners acknowledge, however, that they “do not contend the IRA accounts are Trust assets.” (See, *e.g.*, Separate Statement at 9:18.) “Petitioners contend the evidence to date suggests Ms. Klussman hid or failed to disclose the existence of IRA accounts from her adult son [*sic*], despite the accounts being non-Trust property in which her adult son is the named beneficiary. Evidence concerning that conduct is relevant to (1) Petitioners’ potential defenses to Ms. Klussman’s claims, and (2) Ms. Klussman’s credibility, bias, motive, and veracity in this litigation.” (Separate Statement at 9:18-24.)

First, The Court is unable to make the connection between the subject of the demands and “Petitioner’s potential defenses to Ms. Klussman’s claims.” Petitioners contend that they may be relevant to an unclean hands defense. However, “[t]he doctrine of unclean hands does not deny relief to a plaintiff guilty of any past misconduct; only misconduct directly related to the matter in which he seeks relief triggers the defense.” (*Kendall-Jackson Winery, Ltd. v. Superior Court*

(1999) 76 Cal.App.4th 970, 974.) Petitioners fail to suggest, let alone establish, that the documents sought “relate to the matter in which [Ms. Klussman] seeks relief . . .”

Second, because the documents sought by these requests are not relevant to allegations in the Surcharge Petition, in order to establish that the documents are relevant to Ms. Klussman’s credibility, Petitioners are required to make an evidentiary showing that she “hid or failed to disclose the existence of IRA accounts from her adult son(s).” (See (*Calcor Space Facility v. Super. Ct.* (1997) 53 Cal.App.4th 216, 223 [held: where good cause for production cannot be established by reference to the pleadings, the burden on the party seeking discovery is to “produce evidence from which the court may determine” that “the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence”].) Petitioners cite to no such evidence in their Separate Statement. (See Rule 3.1345.)

The evidence before the Court, although not in the Separate Statement, presented through the Declaration of Abby L. Bloetscher is conclusory and lacks foundation. Through a Supplemental Declaration, Ms. Bloetscher provides limited additional evidence and suggests the South Dakota protective order precludes her to provide more. She suggests that she should present the evidence in camera.

While the Court agrees that the credibility of a witness is always at issue at trial, the breadth of these requests would capture all communications between Ms. Klussman and her sons related to the IRA accounts – not just those which might support a challenge to Ms. Klussman’s credibility. Given the fact the IRA accounts are not Trust property, Max and Dakota’s right to privacy in their financial affairs and the lack of specificity in the Demands and evidence presented to the Court, the Court DENIES the motion as to these requests.

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Conservatorship of Brenda Cortes

21PR000132

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on August 08, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Cynthia Lu Pontynen

25PR000087

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Accountings are hereby waived so long as the conditions under Probate Code section 2628, subdivision (a) continue to be satisfied. The matter is set for a Review – Biennial hearing in two years, on August 08, 2026, at 8:30 a.m. in Dept. B.